

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 4408

By: Blancett of the House

and

Mann of the Senate

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10 COMMITTEE SUBSTITUTE

11 An Act relating to State Question 780 data; amending
12 57 O.S. 2021, Section 632, as amended by Section 2,
13 Chapter 201, O.S.L. 2023, and as renumbered by
14 Section 6, Chapter 201, O.S.L. 2023 (43A O.S. Supp.
15 2025, Section 2-312.2), which relates to calculation
16 of savings and averted costs from implementation of
17 the Oklahoma Smart Justice Reform Act; requiring the
18 Department of Corrections to provide certain data to
19 the Legislative Office of Fiscal Transparency;
20 requiring the Administrator of the Courts to provide
21 certain data to the Legislative Office of Fiscal
22 Transparency; and providing an effective date.

23 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

24 SECTION 1. AMENDATORY 57 O.S. 2021, Section 632, as
amended by Section 2, Chapter 201, O.S.L. 2023, and as renumbered by
Section 6, Chapter 201, O.S.L. 2023 (43A O.S. Supp. 2025, Section 2-
312.2), is amended to read as follows:

1 Section 2-312.2. No later than July 31 of each year, the
2 Department of Corrections shall provide the Legislative Office of
3 Fiscal Transparency with data for the prior fiscal year ending June
4 30, reflecting the number of unique offenders and days served by
5 each offender, upon completion of the corresponding sentence, for
6 those convicted only of crimes modified by State Question 780. No
7 later than July 31 of each year, the Administrator of the Courts
8 shall provide the Legislative Office of Fiscal Transparency with
9 data necessary to calculate the annual savings and averted costs,
10 including the number of persons convicted only of crimes modified by
11 State Question 780 and the number of days sentenced for such crimes.
12 For purposes of this section, crimes modified by State Question 780
13 shall include only those crimes that were previously felonies that
14 are now misdemeanors and crimes that fall between the former dollar
15 threshold and current dollar threshold for crimes whose severity is
16 determined by a dollar threshold. No later than thirty (30) days
17 after being provided with the data from both the Department of
18 Corrections and the Administrator of the Courts, the Legislative
19 Office of Fiscal Transparency shall calculate the annual savings and
20 averted costs from the prior fiscal year that accrued to the state
21 due to the reduction of the number and length of incarcerations
22 attributed to the implementation of the Oklahoma Smart Justice
23 Reform Act. In making the calculation required by this section, the
24 Legislative Office of Fiscal Transparency shall use actual data or

1 best available estimates where actual data is not available. The
2 calculation shall be final and shall not be adjusted for any
3 subsequent changes in the underlying data.

4 SECTION 2. This act shall become effective November 1, 2026.

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6 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
7 OVERSIGHT, dated 03/05/2026 - DO PASS, As Amended and Coauthored.

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